

FEDERAL MARITIME COMMISSION

AENEAS EXPORTING LLC,

Claimant,

v.

**HONEYBEE INTERNATIONAL INC., and
ALL AMERICA SHIPPING,**

Respondent.

Docket No. 22-11

JOINT STATUS REPORT

SUMMARY OF CLAIMS

Aeneas Exporting has been actually and materially injured by Respondents. Respondents have failed to establish, observe, or enforce just and reasonable regulations and practices relating to its receipt, handling, storing, and delivery of Aeneas Exporting's properties. Respondents have failed to enforce just and reasonable regulations and practices relating by adding \$660.00 extra payment on each container after they got the cargo in their warehouse. Claimant was forced to pay the unlawful amount because of the losses that would occur if Claimant moved the cargo to another warehouse.

Respondents have failed to enforce just and reasonable regulations by forcing Claimant to pay storage fees or Respondents will hold the cargo. Respondents have failed to enforce just and reasonable regulations by forcing Claimant to pay \$3,500.00 to get the cargo released from the Respondents' warehouse. Respondent's wrongful and unjust actions were the cause of Aeneas Exporting suffering damages in the amount of \$15,160.00. Aeneas Exporting has also suffered damages to its business in an amount established at hearing.

SUMMARY OF DEFENSES

Honeybee believes that charges that it invoiced Aeneas were reasonable and permitted under its bill of lading and/or tariff. Honeybee also believes that the storage charges that were invoiced to Aeneas were reasonable and necessary and were incurred while the cars were in the possession of All America, a non-NVOCC. No bill of lading was issued for those cars. Honeybee denies that it violated any of the statutes or regulations that it is alleged to have violated and further denies that Aeneas is entitled to any reparations from Honeybee. All America denies that the Federal Maritime Commission has personal jurisdiction over it since it is not an OTI. Honeybee and All America's defenses are 1) failure to state a claim; 2) Aeneas' alleged injuries were the result of its or its agents' actions; 3) Respondents' actions were reasonable under the circumstances; and 4) Claimant's claims are barred in whole or in part by reason of ratification, agreement or consent to the Respondent's alleged conduct. All America has an additional defense of lack of personal jurisdiction.

PRELIMINARY CONFERENCE

Claimant and Respondents' counsel have conferred and agreed upon the matter set forth herein:

The parties agreed to participate in a preliminary conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS). The matter may be resolved through mediation.

PROPOSED SCHEDULE

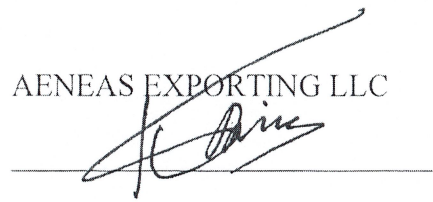
The parties have agreed to adhere to the following proposed schedule:

1. Motions to join other parties, to amend the pleadings or other preliminary matters shall be submitted by August 22, 2022.
2. The identity of expert witness, if any, shall be disclosed and their reports shall be served by August 22, 2022.
3. Discovery shall be completed by September 22, 2022.
4. Any remaining motions regarding discovery shall be submitted by October 21, 2022.
5. Dispositive motions, if any, and request for trial shall be filed no later than November 21, 2022. Either party may file a dispositive motion, and the rules of this Court shall govern responses thereto, which may include a cross-motion for summary judgment.
6. If necessary, a pretrial conference shall be held on December 19, 2022.

The above proposed schedule is presented with the mutual understanding that it may require leave to amend.

Dated: June 23, 2022,

AENEAS EXPORTING LLC



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International, Inc. and All California Auto
Parts, Inc, erroneously sued herein as All
America Shipping.